

22PSCV03111 22PSCV03111

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 22PSCV03111 Hearing Date: September 18, 2026 Dept: H

Doe

v. The Salvation Army, Case No. 22PSCV03111

ORDER

ON DEFENDANT'S EX PARTE APPLICATION TO ADVANCE HEARING DATE

Pending before the Court are two

ex parte applications filed by Defendant The Salvation Army ("Defendant"). The first seeks to advance the hearing date and shorten time on its motion to continue trial and related dates. The second seeks (for a second time) to advance the hearing date on its motion for leave to file a cross-complaint and amended answer. The Court has reviewed Defendant's applications, as well as Plaintiff Jane Doe's oppositions to the applications. For the reasons stated herein, the grants the applications in part, without the calling the matters for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are

designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.) Moreover, a party "cannot create a justification for emergency relief by sitting on her rights until she creates an emergency

situation.” (Davenport v. Blue Cross of California (1997) 52 Cal. App. 4th 435, 454-55.)

At the outset, as to the “amended” ex parte application to advance the hearing date on the motion for leave to file cross-complaint and amended answer, the Court admonishes Defendant’s counsel for filing what is essentially a motion for reconsideration following the Court’s denial of its initial ex parte application to advance that hearing date. (See Order on Defendant’s Ex Parte Application to Advance Hearing Date (“Order”) dated 9/10/2026.) In the “amended” ex parte application, Defendant hardly acknowledges the Court’s denial of its initial application and nowhere addresses the legal standard for reconsideration. This is improper, and the Court admonishes counsel that repeated emergency applications are burdensome to the Court.

In any case, while the Court remains concerned that the need for “emergency” relief is a product of the parties’ own creation (see Order [citing Davenport, supra, 52 Cal. App. 4th at 454-55]), in light of the fast approaching trial date, the Court will grant both applications in part, in that it will specially set the hearing dates on both the motion to continue trial and the motion for leave to file a cross-complaint and amended answer for October 5, 2026, at 9:30 a.m. The Court also specially sets the following briefing schedule on the motions: oppositions are due September 23, 2026 and replies (if any) are due September 28, 2026. The Court notes that given its heavily impacted trial and motion calendars, October 5, 2026 is the earliest date the Court can hear the motions and any subsequent request to further advance the hearing date will be summarily denied.

Accordingly, the hearings on Defendant’s motion for leave to file a cross-complaint and Defendant’s motion to continue trial are advanced to this date and continued to October 5, 2026, at 9:30 a.m.

In addition, on the Court’s own motion, the Court advances the Final Status Conference to today’s date and continues it to October 7, 2026, at 10 a.m.

Defendant is ordered to provide

notice.